



**Bureau of Experts at the Council of Ministers
Official Translation Department**

Law on the Protection of Manuscript Heritage in the Kingdom of Saudi Arabia

Royal Decree No. M/23
August 14, 2001

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.

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Law on the Protection of Manuscript Heritage in the Kingdom of Saudi Arabia

Article 1: Definitions

In this Law, the following terms shall have the meanings assigned thereto:

- a) **Manuscript:** Any handwritten or typewritten document produced 50 years ago or more, whether subsequently published or not, and whether held in a public or private library, or by an entity or a person.
- b) **Library:** King Fahad National Library.
- c) **Restoration:** The treatment of the damaged parts of a manuscript and the conservation of the manuscript in a manner that does not affect its intellectual content.
- d) **Registration:** The recording of the metadata of the manuscript in a special registry maintained by the Library.
- e) **Cataloging:** The recording of the metadata of a manuscript, including its title, subject, author, period in which the author lived, number of lines per page, number of papers, scribe and scribing date, any other information noted thereon regarding ownership and endowment, as well as a description of its physical condition and its artistic features.

Article 2

This Law aims to achieve the following:

- a) Preserve the manuscript heritage in the Kingdom.
- b) Provide the Library with the legal basis to approach local libraries and entities as well as individuals to obtain their consent to scan manuscripts and make them accessible to researchers in one place.
- c) Enable the Library to issue a national catalog of manuscripts located within the Kingdom, whereby researchers and others can access information about such manuscripts.

Article 3

The Library shall endeavor to:

- a) acquire original manuscripts through purchase, gift, or endowment;
- b) register, in a special registry, manuscripts held in public and private libraries and by entities and individuals, as well as issue registration certificates to the owners of such manuscripts, whether individuals or public and private libraries;
- c) coordinate with other technically qualified libraries to sterilize, restore, and conserve manuscripts;
- d) scan all original manuscripts held in public and private libraries as well as those owned by individuals, and place a copy thereof in its collections to make it accessible to researchers. If another copy is deposited in a special repository, it shall be protected and secured; such repository shall be located at a site located at least four kilometers away from the Library;
- e) catalog the manuscripts in the Kingdom and prepare a descriptive catalog therefor, and continue to issue catalogs for each new collection of manuscripts the cataloging of which is completed; and
- f) exchange copies of manuscripts between scientific institutions within the Kingdom and abroad.



Article 4

The Library's Board of Trustees shall form a specialized committee to identify the manuscript heritage protected under this Law, and to review the violations of the provisions of the Law. The Implementing Regulations shall specify the work rules and procedures of such committee.

Article 5

- A. The Library shall have the right to access the manuscripts of private libraries, entities, or individuals, for the purpose of documentation.
- B. The owner of a manuscript may, upon obtaining the Library's approval, take the manuscript outside the Kingdom for the purpose of restoration, display, or sale if the Library or others in the Kingdom do not wish to purchase the manuscript at the offered price; in such case, the Library shall be notified of the new owner.

Article 6

A person who violates the provisions of Article 5(b) shall be subject to a fine not exceeding 50 thousand riyals, in accordance with Article 4 of this Law. An appeal may be filed with the Board of Grievances within 60 days from the date of notification of the penalty decision.

Article 7

The Library's Board of Trustees shall issue the Implementing Regulations of this Law.

Article 8

This Law shall be published in the Official Gazette and shall enter into force 90 days from the date of its publication, and shall repeal any provisions conflicting therewith.